

HOUSE No. 4058

The Commonwealth of Massachusetts

PRESENTED BY:

Manny Cruz and Sean Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to HVAC safety accountability and public transparency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/16/2025</i>

HOUSE No. 4058

By Representatives Cruz of Salem and Reid of Lynn, a petition (accompanied by bill, House, No. 4058) of Manny Cruz relative to licensure of and negligence by HVAC companies and technicians. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to HVAC safety accountability and public transparency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 26F½ of chapter 148 of the General Laws, as appearing in the 2022 official
2 Edition, is hereby amended by adding the following 6 subsections:-

3 (g) For the purposes of subsections (h) to (l) inclusive, the following terms shall, unless
4 the context clearly requires otherwise, have the following meanings:

5 “Board”, the board of state examiners of plumbers and gas fitters established in section
6 36 of chapter 13.

7 “Division”, division of professional licensure.

8 “HVAC”, a heating, ventilation and air conditioning system.

9 (h) HVAC companies and technicians shall be accountable for negligence or errors that
10 resulted in bodily harm or death due to carbon monoxide poisoning or any related safety hazards
11 involving carbon monoxide.

(i) The board shall have the authority to impose financial penalties, licensure suspension or licensure revocation on HVAC companies and individual technicians whose negligence or errors resulted in bodily harm or death due to carbon monoxide.

(j) The board shall: (i) conduct mandatory licensure reviews for HVAC technicians or companies involved in serious safety incidents involving carbon monoxide related to HVAC systems; (ii) require a formal investigation and hearing process to ensure due process before license suspension or revocation; and (iii) establish a clear process for revoking the licenses of HVAC technicians and companies found guilty of gross negligence or errors that directly result in harm from carbon monoxide related to HVAC systems.

(k) The division shall create and maintain a publicly accessible online database on its website listing HVAC companies and individual technicians whose licenses have been suspended or revoked. The division shall provide details of the violations or incidents leading to the suspension or revocation of licenses on the online database to ensure transparency and accountability.

(l) HVAC technicians and companies found guilty of gross negligence or errors that directly result in harm from carbon monoxide related to HVAC systems shall be prohibited from obtaining new licenses under a different company name or transferring to another company without disclosure of past revocations to the division.